REPUBLIC OF NORTH MACEDONIA
versus
ALOIS CHIMERI
and
OBERT BETA GUVHEYA
and
MINISTER OF FOREIGN AFFAIRS & INTERNATIONAL TRADE
and
MINISTER OF LOCAL GOVERNMENT & PUBLIC WORKS

HIGH COURT OF ZIMBABWE
KATIYO J
HARARE, 20 January and 16 March 2026

Opposed Application

N. Mugondiwa, for the applicant
M. Zvirahwa, for the 1st and 2nd respondent
L.T. Muradzikwa, for the 3rd and 4th respondent

KATIYO J:

Introduction

This matter concerns an application by the Applicant for the eviction of the first and second Respondents from immovable property known as No. 41 Argyle Road, Highlands, Harare, being the Remaining Extent of Lot 64 Highlands Estate of Welmoed measuring 6265 square metres and held under Deed of Transfer No. 6281/1980.

The Applicant, the Republic of North Macedonia, approaches this Court seeking the vindication of its property rights through the *rei vindicatio*. The Respondents oppose the application and the first Respondent has filed a counter-application seeking a declaratory order declaring him the lawful owner of the property by virtue of acquisitive prescription.

The Court is therefore called upon to determine both the main application for eviction and the counter-application asserting ownership through prescription.

Background

The Applicant's claim is premised on registered ownership of the property in question. The property forms part of diplomatic property historically associated with the former Socialist Federal Republic of Yugoslavia and subsequently transferred to the Applicant as a successor state.

The Applicant alleges that the first Respondent unlawfully occupies the premises and refuses to vacate despite demand.

The first Respondent, on the other hand, asserts that he has occupied the property continuously since approximately 1992 following the departure of the former Yugoslav diplomatic mission. He claims that through such occupation he has acquired ownership by acquisitive prescription in terms of the Prescription Act [*Chapter 8:11*].

The third and fourth Respondents have indicated that they do not oppose the relief sought by the Applicant.

Issues for Determination

From the pleadings and submissions filed of record, the following issues arise for determination:

1. Whether the Applicant has established the requirements for the *rei vindicatio* and is entitled to eviction of the Respondents.
2. Whether the first Respondent has successfully established ownership through acquisitive prescription.
3. Whether the counter-application for a declaratory order should succeed.

The Applicable Legal Principles

The Rei Vindicatio

The *rei vindicatio* is the classical remedy available to an owner seeking to recover possession of property from a person who is unlawfully in possession.

The requirements were authoritatively articulated in *Chetty* v *Naidoo* 1974 (3) SA 13 (A) where the court held that an owner who proves ownership and that the property is in the possession of another is entitled to restoration unless the possessor establishes a lawful right to retain the property.

The principle has been reaffirmed in Zimbabwean jurisprudence including *Savanhu* v *Hwange Colliery Company* SC 8/15, where the Supreme Court reiterated that the owner bears the initial burden of proving ownership and possession by another.

Once these elements are established, the onus shifts to the possessor to establish a lawful basis for continued occupation.

Acquisitive Prescription

The first Respondent's defence is premised on acquisitive prescription in terms of s 4 of the Prescription Act [*Chapter 8:11*], which provides that a person may acquire ownership of property if they possess it openly and as if they were the owner for an uninterrupted period of thirty years.

Possession must be:

- open and notorious
- adverse to the true owner
- continuous for the statutory period

The party alleging prescription bears the onus of proving these elements.

Analysis

Whether the Applicant has proved ownership

The Applicant relies on the Deed of Transfer and supporting documentation indicating that the property forms part of diplomatic assets transferred to the Republic of North Macedonia following the dissolution of the former Yugoslavia.

The evidence before the Court demonstrates that the property is registered in favour of the Applicant. Registration of immovable property constitutes prima facie proof of ownership under Zimbabwean property law.

The Respondents have not produced any documentary evidence showing transfer of ownership into their names.

Accordingly, the Court is satisfied that the Applicant has established the first requirement of the *rei vindicatio.*

Possession by the Respondents

It is common cause that the first Respondent has been occupying the property together with those claiming through him.

The second requirement of the *rei vindicatio* is therefore also satisfied.

The Defence of Acquisitive Prescription

The first Respondent contends that he has occupied the property since 1992 and therefore acquired ownership through prescription.

However, several difficulties arise with this claim.

Failure to Prove Continuous Possession

The Respondent relies primarily on photographs, affidavits of acquaintances and proof of renovations.

While these materials may suggest occupation, they do not conclusively establish uninterrupted civil possession for the full statutory period.

The evidence is fragmented and does not adequately demonstrate the animus domini required for prescription.

Diplomatic Property Context

The property in question forms part of diplomatic premises associated with a foreign state.

Zimbabwe has domesticated the Vienna Convention on Diplomatic Relations through the Privileges and Immunities Act [*Chapter 3:03*]. Under Article 22 of the Convention, the premises of a diplomatic mission are inviolable.

While this does not create immunity from property law entirely, it underscores the exceptional status of such premises and weighs heavily against the notion that abandonment occurred in the manner alleged by the Respondent.

Delay by the Applicant

The Respondent also relies on alleged inaction by the Applicant over many years.

However, mere delay does not establish acquisitive prescription. The Respondent must demonstrate possession satisfying the strict legal requirements for the full statutory period.

On the evidence before this Court, that burden has not been discharged.

The Counter-Application

The counter-application seeks a declaratory order declaring the first Respondent the lawful owner of the property.

Given the Court's findings that the Respondent has failed to establish acquisitive prescription, the foundation of the counter-application collapses.

The counter-application must therefore fail.

Conclusion

The Applicant has successfully established the requirements of the *rei vindicatio* by proving:

1. Ownership of the property; and
2. Possession of the property by the Respondents without lawful cause.

The Respondents have failed to establish any lawful basis for continued occupation.

Accordingly, the Applicant is entitled to the relief sought.

Order

Accordingly, it is ordered that:

1. The main application is hereby granted.
2. The first and second Respondents and all persons claiming occupation through them are ordered to vacate the property known as No. 41 Argyle Road, Highlands, Harare, being the Remaining Extent of Lot 64 Highlands Estate of Welmoed measuring 6265 square metres held under Deed of Transfer No. 6281/1980.
3. Failing compliance with paragraph 2 above, the Sheriff of Zimbabwe is authorised to evict the Respondents and all those claiming occupation through them from the property.
4. The counter-application by the first Respondent for a declaratory order based on acquisitive prescription is hereby dismissed.

5. The first and second Respondents shall jointly and severally pay the costs of suit on the ordinary scale, the one paying the other to be absolved.

KATIYO J:……..

Kantor Immerman Legal Practitioners, applicant's legal practitioners
Laita and Partners, respondents legal practitioners
Civil Division of the Attorney General, respondent's legal practitioners